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Case Name: *Santos Medina v. SF Green Construction Inc., et al.*

Case No.: 24CV453662

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Santos Medina (“Plaintiff”) moves to vacate the June 26, 2025 Order compelling arbitration of the claims against Defendant Solar Mosaic LLC (“Mosaic” or “Defendant”).⁷ Notice of Motion (the “Motion to Vacate”) at 1:24-26 (filed: Jan. 16, 2026). The Motion is made on the grounds: that Plaintiff has discovered new facts that are the basis of new allegations, a new cause of action, and a prayer for new remedies; that Plaintiff has filed a Motion for Leave to file a First Amended Complaint; that Solar Mosaic LLC’s arbitration provision unlawfully prohibits public injunctive relief pursuant to the Consumer Legal Remedies Act and the Unfair Competition Law; that the arbitration provision in whole is expressly null and void due to the unlawful terms. *Id.* at 1:27-2:6.

The Motion to Vacate came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Procedural Posture

Plaintiff filed the Complaint in this civil action on December 10, 2024, arising from the installation of a solar system on his home that was financed through his loan agreement with Mosaic (the “Loan Agreement”). On January 13, 2025, Mosaic moved to compel arbitration under the arbitration provision in the Loan Agreement and Plaintiff filed his Opposition to the motion to compel arbitration on February 6, 2025.

In its Order signed and dated on June 25, 2025, the Court granted Mosaic’s Motion to compel arbitration and ordered that this dispute be resolved in binding arbitration, and that “the action, including any discovery and motions, against Defendant Solar Mosaic LLC only is stayed pending completion of the arbitration[.]” Order at 2:15-18. The Clerk

⁷ While Plaintiff’s Motion occasionally refers to a “June 4, 2025” Order, the record shows that the hearing on Mosaic’s motion to compel arbitration was held on June 4, 2025; the Order granting the motion to compel arbitration was signed and dated by the Court on June 25, 2025; and the Clerk of the Court entered this Order on the case docket *and* served written notice of entry of this Order on the parties on June 26, 2025. For clarity of the record, the Court will hereinafter refer to this Order as the “June 26, 2025 Order.”

of the Court filed this Order on the case docket and gave notice of the Court's Order to all parties via mail on June 26, 2025, as evidence in the Clerk of the Court's Poof of Service.⁸

On January 16, 2026, Plaintiff filed this Motion to Vacate the June 26, 2025 Order, invoking Code of Civil Procedure Section 1008. The Motion is accompanied by Plaintiff's counsel's declaration asserting that, since the date of the Court's June 26, 2025 Order, he became aware of allegations raised against Mosaic in an unrelated litigation filed by the Attorney General of the State of Minnesota (the "Minnesota Action"). The Motion to vacate asserts a new theory of the case arising from facts Plaintiff takes from the Minnesota Action, and a new legal theory in opposition to Mosaic's January 13, 2025 motion to compel arbitration.

The Minnesota Action was filed on March 8, 2024⁹—almost one year before Plaintiff filed its Opposition on February 6, 2025, to Mosaic's motion to compel arbitration (and indeed almost nine months before Plaintiff filed its Complaint in this case on December 10, 2024).

The Court, in the broad exercise of its discretion, finds that any fact allegations in the Complaint filed on March 8, 2024 in the Minnesota Action were not new facts that Plaintiff's counsel could not, with reasonable diligence, have discovered and argued in its February 6, 2025 opposition papers to the motion to compel arbitration almost a year later.

Moreover, as explained in footnote 1 above, the Court finds that the Clerk of the Court served Plaintiff with written notice of the entry of the Court's Order compelling arbitration on June 26, 2025. Hence, for purposes of Code of Civil Procedure Section 1008(a), the ten-day period for Plaintiff to file a motion for reconsideration ran from that service of written notice of entry of that Order on June 26, 2025, not from the June 4, 2025 hearing date. So, for clarity of the record, the operative date triggering the ten-day deadline is June 26, 2025, the date the Clerk served written notice of entry.

II. Analysis of the Motion to Vacate

A. The Motion to Vacate is untimely and barred by Section 1008.

Applications for reconsideration of a trial court's order are governing by Code of Civil Procedure Section 1008. Compliance with Section 1008 is jurisdictional: "No application to reconsideration any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section." C.C.P. § 1008(e).

The plain text of Section 1008(a) states that "any party affected" by an order "may,

⁸ Again, for clarity of the record, the Court refers to this Order that is the subject of this Motion to Vacate as the "June 26, 2025 Order."

⁹ See Complaint, *Minnesota v. Goodleap LLC et al.*, No. 27-CV-3558 (Fourth Jud. Dist. Ct. March 8, 2024).

within 10 days after service upon the party of written notice of entry of the order *and* based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter an modify, amend, or revoke the prior order.” C.C.P. § 1008(a) (emphasis added). The requirements of Section 1008(a) are stated in the conjunctive—“and”—meaning that unless all those requirements are satisfied, relief under Section 1008(a) is unavailable.

Here, while Plaintiff is a party “affected” by the June 26, 2025 Order, he fails to satisfy an express requirement of Section 1008(a) that this motion be filed “within 10 days after service upon the party of written notice of entry of the order.” C.C.P. § 1008(a). While Plaintiff was served with written notice of entry of the Order compelling arbitration on June 26, 2025, he did not file this Motion until more than six months later on January 16, 2026. Hence, this Motion that Plaintiff brings under Section 1008 is time-barred by the plain text of Section 1008(a)—and that bar is jurisdictional under Section 1008(e). C.C.P. §§ 1008(a) & (e).

Nor does any other subdivision of Section 1008 authorize Plaintiff’s Motion to Vacate.

Plaintiff is not the “party who originally made an application for [the June 26, 2025] Order,” so subdivision (b) does not authorize Plaintiff’s Motion. C.C.P. § 1008(b).

Nor is Plaintiff “a court,” so subdivision (c) does not authorize Plaintiff’s Motion either. C.C.P. § 1008(c). While subdivision (c) expressly preserves the court’s authority to reconsider on its *own* motion when there has been a change of law (*id.*), that provision does not create a party-triggered procedural mechanism that bypasses the express ten-day deadline imposed by subdivision (a).¹⁰

Plaintiff’s reliance on *Le Francois v. Goel* (2005) 35 Cal. 4th 1094 does not save his Motion. While *Le Francois* recognized that an order compelling arbitration is interlocutory and that the court retains *inherent* authority to revisit such interim orders, that inherent authority belongs to the court acting on its own motion, *not* to a party like Plaintiff filing an untimely written motion. *Le Francois* made crystal clear that “a party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of section . . . 1008.” *Id.* at 1097. Here, Plaintiff has not satisfied the requirements of Section 1008 because Plaintiff filed this Motion more than six months after the 10-day deadline of Section 1008(a) expired.

Hence, by the very authority that Plaintiff invokes, the Motion is time barred and

¹⁰ Likewise, Plaintiff’s argument that he is entitled to reconsideration of the June 26, 2025 Order “on the grounds . . . that Plaintiff has filed a Motion for Leave to file a First Amended Complaint” (Motion at 1:27-2:2) is completely untethered and unmoored from the statutory text of Section 1008. No subdivision of Section 1008 authorizes a Court to reconsider or vacate an Order simply because a party believes it later develops a stronger pleading theory and seeks leave to amend a pleading.

jurisdictionally barred. *Le Francois v. Goel*, 35 Cal. 4th at 1097; C.C.P. § 1008(a) & (e).

So on this ground, the Motion to Vacate is **DENIED**.

B. Plaintiff offers no good explanation why he did not argue in his *February 2025* Opposition to the motion to compel arbitration facts that he now wants to inject from a Complaint in another case filed almost a year earlier in *March 2024*.

To satisfy Section 1008:

The party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time. In short, the moving party's burden is the same as that of a party seeking new trial on the ground of 'newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.'

Baldwin v. Home Sav. of Am. (1997) 59 Cal. App. 4th 1192, 1198.

Here, Plaintiff argues that he is entitled to reconsideration because his counsel "became aware of allegations made by the Minnesota Attorney General" against Mosaic. Declaration of David Valdez Jr. ("Valdez Decl.") at ¶ 2.

But as those fact allegations are set forth in the Complaint in the Minnesota Action filed on March 8, 2024, they are not new facts that Plaintiff's counsel could not, with reasonable diligence, have discovered and argued in its February 6, 2025 papers opposing Mosaic's motion to compel arbitration almost a year later. Nor does Plaintiff offer (let alone carry his burden to establish) a satisfactory explanation about why he didn't argue those March 2024 facts in Plaintiff's February 2025 opposition papers.

Hence, for this independent reason, Plaintiff fails to satisfy Section 1008. And his failure to satisfy Section 1008 dooms this Motion that is brought under Section 1008.

So on this ground, the Motion to Vacate is **DENIED**.

C. Plaintiff offers no good explanation why he did not argue in his *February 2025* Opposition to the motion to compel arbitration law that he now wants to argue from the *McGill v. Citibank* case decided eight years earlier in *February 2017*.

Plaintiff also moves for reconsideration of the June 26, 2025 Order compelling arbitration because he wants to argue now that under *McGill v. Citibank, N.A.* (2017) 2 Cal. 5th 945 that the arbitration provision here contains an unenforceable pre-dispute contractual waiver of the right to seek public injunctive relief. Motion to Vacate at 9:5-17 (citing and arguing *McGill*).

The same timeliness and jurisdiction bars under Sections 1008(a) & (e) discussed above doom Plaintiff's Motion based on its *McGill* argument for reconsideration now.

McGill was decided on February 27, 2017.

The plain text of Section 1008(a) requires a showing by Plaintiff of “new or different facts, circumstances, *or law*[.]” C.C.P. § 1008(a) (emphasis added).

Case law like *McGill* decided eight years before the order sought to be reconsidered does not qualify as new or different law under section 1008.

Ignorance of the law, belated legal research, or legal arguments that could and should have been raised Plaintiff's February 2025 Opposition to Mosaic's motion to compel arbitration cannot and do not satisfy this plain statutory requirement of Section 1008(a).

A party like Plaintiff seeking reconsideration based on a legal theory must show either that the legal authority is genuinely new—decided after the order being challenged—or that some new circumstance makes a pre-existing legal rule newly applicable. As Plaintiff makes no such showing here, this Motion fails to meet this requirement of Section 1008(a). As it fails to meet this requirement of Section 1008(a)—and fails to satisfy any other subdivision of Section 1008—this Motion is barred under Section 1008(e).

In sum, the 2017 *McGill* case is not new law for purposes of the motion to compel arbitration litigated in early 2025 and decided in the June 26, 2025 Order compelling arbitration that Plaintiff now seeks to vacate under Section 1008. Plaintiff has failed to carry his burden of giving a satisfactory explanation for why *McGill* was not raised in his opposition to the motion to compel arbitration filed on February 6, 2025 if counsel believed it applied.

So on this ground of *McGill*-based invalidity of the arbitration clause, the Motion to Vacate is **DENIED**.

III. Conclusion & Order

For all the reasons discussed above, Plaintiff's Motion to Vacate is **DENIED** on all grounds.¹¹

¹¹ The Court is aware that Mosaic has filed a separate motion for sanctions under Code of Civil Procedure Section 128.7 against Plaintiff for bringing this Motion to Vacate. As Mosaic's motion for sanctions is noticed for hearing on May 19, 2027, and that hearing date has yet arrived, the Court declines to reach the merits on the motion for sanctions today. The sanctions motion will be addressed in due course, and all parties will have the fair opportunity to be heard, at the noticed hearing on May 17, 2027. Any opposition, reply, and evidentiary showing concerning safe-harbor compliance, objective frivolousness, and the other elements of section 128.7 liability should be

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

presented at the May 17, 2027 hearing. The Court's ruling today on Plaintiff's Motion to Vacate does not constitute an advance ruling on the sanctions motion, and the Court expresses no view at this time on whether sanctions are warranted under Section 128.7.

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